



United States  
Attorney's Office  
Western District of Kentucky



# The Arthritis Knee Pain Centers and Dr. John Rush Face Federal Civil False Claims Allegations

Friday, April 18, 2025

## For Immediate Release

U.S. Attorney's Office, Western District of  
Kentucky

Louisville, KY- The Arthritis Knee Pain Centers (AKPC) and Dr. John Rush, its owner and Chief Executive Officer, face False Claims Act allegations related to false claims for knee injection procedures, announced U.S. Attorney Michael A. Bennett of the Western District of Kentucky.

In its complaint filed in the U.S. District Court for the Western District of Kentucky, the United States alleges that between April 15, 2019, and the present, AKPC and Dr. Rush knowingly submitted or caused the submission of millions of dollars in false claims to Medicare for: 1) medically unreasonable and unnecessary knee injections; and 2) millions of milliliters (ml) of more contrast dye than they actually used during knee injection procedures.

The complaint alleges that AKPC and Dr. Rush falsely increased Medicare payments by unreasonably and unnecessarily doubling the number of knee injection visits for patients with bilateral knee osteoarthritis. Instead of treating both knees on the same date of service, AKPC and Dr. Rush required patients to receive their treatment on separate dates. As alleged, attending twice as many visits not only inconvenienced thousands of Medicare patients, but also extended the length of their treatment, often by more than a month, delaying pain relief.

The complaint further alleges that the named defendants routinely submitted false claims for reimbursement from Medicare for single-use vials of contrast dye. This involved the named defendants claiming that they only used a portion of a single-use vial on a patient and then discarded the remainder of the contrast dye (Medicare will reimburse for discarded amounts). However, and as alleged, the reality was that the named defendants did not discard the contrast dye and, instead, used it on other patients.

“To increase Medicare reimbursements by millions of dollars, the defendants, as alleged, delayed pain relief to thousands of Medicare patients and risked infecting them with contaminated contrast dye,” said U.S. Attorney Bennett. “This office has and will continue to vigorously prosecute those who prioritize profits over patients.”

This matter is being handled by Assistant U.S. Attorneys Matt Weyand and Jessica R.C. Malloy with assistance from Auditor Phil Bezeherthy and Investigator Cristal Fox.

The case is captioned *United States v. John Rush, M.D., et al.*, No. 3:25-CV-200-CRS (W.D. Ky.) and is available [here](#).

*The claims alleged by the United States are allegations only. There has been no determination of liability.*

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